

FILED BY:

TENTATIVE RULING:

Continued by the Court to October 12, 2026.

3. 9:00 AM CASE NUMBER: C24-00945

CASE NAME: BANK OF AMERICA N.A. VS. MARK BREGMAN

***HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion to Set Aside the Dismissal to Enter Judgment Pursuant to Stipulation on March 3, 2026 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on July 27, 2026.

Background

The parties entered into that certain settlement agreement on or about May 30, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant debtor Mark F. Bregman ("Defendant") in the amount of \$36,159.83, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Settlement Agreement filed June 17, 2024, ¶¶1-4; see also Declaration filed as part of Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶¶2-3. The Court hereby takes judicial notice of the Settlement Agreement. See Request for Judicial Notice filed March 3, 2026, **Exhibit B**. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. See Settlement Agreement, ¶¶1-4.

Defendant defaulted on the Payment Terms and Conditions. Supporting Declaration, ¶4. Defendant failed to cure after notice. *Id.* at ¶5 and **Exhibit A** thereto.

After credit for amounts paid, there remains \$15,356.22 due and owing, plus costs of \$1,003.61. See Supporting Declaration, ¶7.

An Amended Notice of Motion was filed March 30, 2026. The Proof of Service filed March 30, 2026 reflects service of the amended motion on Defendant with the July 27, 2026 hearing date included.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.

3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$15,356.22, plus costs of \$1,003.61.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

4. 9:00 AM CASE NUMBER: C24-01160

CASE NAME: DENEA MARHX VS. INTERNATIONAL CHURCH OF THE FOURSQUARE GOSPEL
HEARING ON SUMMARY MOTION BY DEFENDANT INTERNATIONAL CHURCH OF THE FOURSQUARE GOSPEL

FILED BY:

TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant International Church of the Foursquare Gospel. For the reasons set forth, the motion is **DENIED**.

Background

Plaintiff Denea Marhx was employed by defendant International Church of the Foursquare Gospel ("International Foursquare"), and specifically by its branch the Danville Foursquare Church, known as "The Rock." (Def. Separate Statement ("SS") of Undisputed Material Facts ("UMFs") 7, 8; Compl. ¶¶ 2, 3, 10.) Though Danville Foursquare Church was named as a separate defendant and legal entity, International Foursquare states The Rock is not a separate legal entity from International Foursquare. (UMF 7; Fry Decl. ¶ 1.)

Plaintiff alleges she was employed by International Foursquare beginning in 2006, was moved to the district office of International Foursquare in 2014 and began serving as Finance Director at The Rock in May 2017. (Compl. ¶¶ 10, 12.) She was terminated by The Rock on October 4, 2023, though she was rehired in a temporary capacity for between October 19, 2023 and January 7, 2024, when her temporary position expired. (Compl. ¶¶ 53, 57-61.)

Plaintiff alleges that she became aware of, and reported, several financial improprieties regarding the use of The Rock's funds and personal expenditures by The Rock's pastor, Rick Fry, and his family. (See *generally* Compl. ¶¶ 13-52.) Marhx alleges that her employment was wrongfully terminated in retaliation for her reporting unlawful and improper financial activities by The Rock, Pastor Fry, and his family members. (Compl. ¶¶ 41-61, 66-73, 75-79.)

Legal Standards for Ruling on Defendant's Motion

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense